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The Gazette of the Democratic Socialist Republic of Sri Lanka EXTRAORDINARY

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2219/66 – FRIDAY, MARCH 19, 2021

(Published by Authority)

PART I: SECTION (I) – GENERAL

Government Notifications

My No.: IR/COM/04/2017/234.

THE INDUSTRIAL DISPUTES ACT, CHAPTER 131

THE award transmitted to me by the Arbitrator to whom the Industrial Dispute which has arisen between Mrs. H. W. S. C. K. Wijayawardena, No. 18/5, “Wijayapahaya”, 2nd Lane, Ambagahapura Housing Scheme, Boralesgamuwa of the one part and Bank of Ceylon Head Office, 26th Floor, No. 04, Bank of Ceylon Mawatha, Colombo 01 of the other part was referred by order dated 28.02.2019 made under section 4(1) of the Industrial Dispute Act, Chapter 131 (as amended) and published in the *Gazette* of the Democratic Socialist Republic of Sri Lanka Extraordinary No. 2113/57 dated 07.03.2019 for Settlement by Arbitration is hereby published in terms of section 18(1) of the said Act.

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Department of Labour,
Colombo 05.
23rd February, 2021.



In the matter of an Industrial Dispute

Between,

Mrs. H. W. S. C. K. Wijayawardena,
No. 18/5, "Vijayapahaya",
2nd Lane, Ambagahapura Housing Scheme,
Boralesgamuwa

And

Of One Part

Case No. A/17/2019

And

Bank of Ceylon Head Office,
26th Floor,
No. 04, Bank of Ceylon Mawatha,
Colombo 1

Of Other Part

THE AWARD

The Honourable Minister of Labour Relations and Trade Union Relations do by virtue of the powers vested in him by Section 4 (1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 appointed me as Arbitrator by his order dated 28th February 2019 and referred the following dispute to me for settlement by Arbitration.

The matter in dispute between the aforesaid parties are:-

Whether Mrs. H. W. S. C. K. Wijayawardena who worked as an Assistant Bank Manager of the Bank of Ceylon had been caused injustice by being terminated on 15.04.2007, the decision taken by the Bank not to pay her pension and reduction of part of her Bank of Ceylon Provident Fund and if so, to what relief she is entitled.

Appearance:

There was no appearance for the Applicant.

Mr. Chamil Perera, Attorney-at-Law of Employers' Federation and Legal Officer Ms. Anusha Chandrasekara, appeared for Bank of Ceylon.

Parties filed their first Statements.

At the inquiry the Applicant did not appear.

By her letter dated 26.07.2019, the Applicant informed the Registrar as she has to go overseas, requested the Court to lay by her case.

Further the Applicant, by her e-mail dated 05.01.2021 informed the courts that she has no intention to continue with case as she has gone overseas. Therefore case was dismissed.

In the circumstances I make no Award.

17th February, 2021.

KAPILA MANAWASINGHE SARATHCHANDRA,
Arbitrator.